



MICHIGAN DEPARTMENT OF ENVIRONMENTAL QUALITY
WATER BUREAU

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NOTICE OF INTENT

FOR COVERAGE UNDER THE
NATIONAL POLLUTANT DISCHARGE ELIMINATION SYSTEM (NPDES)
FOR STORM WATER DISCHARGES ASSOCIATED WITH INDUSTRIAL ACTIVITY
By Authority of Act 451, PA 1994, Part 31

DEQ only-do not write in this space

71867.1

Submission of this Notice of Intent (NOI) constitutes notice that the party identified as Owner/Permittee requests authorization to discharge under the NPDES General Permit issued for storm water discharges associated with industrial or other activity in Michigan. The Michigan Department of Environmental Quality may deny coverage under the general permit and require submittal of an application form for an individual permit. Becoming a permittee obligates a discharger to comply with the terms and conditions of the General Permit, including annual payment of a \$280.00 fee billed each January. Failure to comply with these provisions may result in fines of up to \$25,000 per day and the possibility of imprisonment, in accordance with Act 451, PA 1994, Part 31.

FACILITY INFORMATION (where discharge occurs)			OWNER/PERMITEE INFORMATION		
SITE/FACILITY NAME Wexford County Landfill			NAME Wexford County Department of Public Works		
ADDRESS 990 US 131 North			ADDRESS 3161 S. Mitchell Lake Drive		
CITY Manton	STATE MI	ZIP CODE 49663	CITY Cadillac	STATE MI	ZIP CODE 49601
RECEIVING WATERS Maton Creek & Un-named Creek			CONTACT PERSON John Divozzo		
LATITUDE 44° 20' 58.343" N		LONGITUDE 105° 23' 39.922" W	CONTACT PERSON'S TELEPHONE (INCLUDING AREA CODE) (231) 775-0155		
- 1/4 of NE 1/4 of Section 34, Town 23N, Range 9W Township Cedar Creek, County Wexford			MAILING INFORMATION (for billing)		
Is the facility discharge: (must complete) New ☒ or Existing ☐ Facility started operations: 1979			NAME John Divozzo		
If existing with NPDES coverage: NPDES number(s):			ADDRESS 3161 S. Mitchell Lake Drive		
			CITY Cadillac	STATE MI	ZIP CODE 49601
			TELEPHONE NUMBER (INCLUDING AREA CODE) (231) 775-0155		

PRIMARY STANDARD INDUSTRIAL CLASSIFICATION (SIC) CODE

4 9 5 3

TO DETERMINE THE PRIMARY INDUSTRIAL ACTIVITY, USE THE VALUE OF NET REVENUES. IF SUCH INFORMATION IS NOT AVAILABLE FOR A PARTICULAR FACILITY, THE NUMBER OF EMPLOYEES OR PRODUCTION RATE FOR EACH PROCESS MAY BE COMPARED. THE OPERATION THAT GENERATES THE MOST NET REVENUE OR EMPLOYS THE MOST PERSONNEL IS THE OPERATION IN WHICH THE FACILITY IS PRIMARILY ENGAGED.

FACILITY IS ENGAGED IN: CHECK THOSE THAT APPLY (If none apply, skip this block)

☐ HAZARDOUS WASTE TREATMENT, STORAGE, OR DISPOSAL

☒ LANDFILL

☐ LAND APPLICATION SITE OR OPEN DUMP

☐ STEAM ELECTRIC POWER GENERATING FACILITY
COAL HANDLING? ☐ YES ☐ NO

☐ SEWAGE TREATMENT WORKS

CERTIFIED STORM WATER OPERATOR NAME (INDUSTRIAL ONLY):
Susan Toczyłowski

CERTIFICATION NUMBER:
06528

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W.D.-SURFACE WATER
PERMITS SECTION

Any person requesting authorization to discharge from an area described below may be subject to the terms of the NPDES General Permit for storm water discharges with **required monitoring**, and should examine the requirements of that permit prior to submitting this NOI. (if none apply skip the block)

☐ **SECONDARY CONTAINMENT**

I (we) request to discharge storm water to a surface water of the state from a secondary containment structure installed at the facility as required by required by state or federal law.

*Request not necessary if discharging storm water to a sanitary or combined sewer system.

☐ **ENVIRONMENTAL CONTAMINATION SITE**

I (we) request to discharge storm water from an area identified on Michigan's list of Sites of Environmental Contamination pursuant to the Natural Resources and Environmental Protection Act, PA 451 of 1994, Part 201 (formerly 307).

*Request only necessary if storm water comes into contact with contaminated materials.

☐ **OTHER SIGNIFICANT CONTRIBUTOR**

The Department of Environmental Quality has determined that the storm water discharges from this facility are a significant contributor of pollutants to waters of the state.

CERTIFICATION

State of Michigan regulations require this form be signed as follows:

Corporation: By the principal executive officer or vice president or higher, or his/her designated representative if the representative is responsible for the overall operation of the facility from which the discharge described originates.

Partnership: By a general partner

Sole Proprietorship: By the proprietor

Municipal, State, or Other Public Facility: By a principal executive officer, the mayor, village president, city or village manager, or other duly authorized employee

I certify that my facility has developed a Storm Water Pollution Prevention Plan (SWPPP) according to the requirements of the Storm Water General Permit.

I certify that my facility has no unauthorized discharges.

I certify that my facility has implemented the non-structural controls as described in the SWPPP. New facilities shall fulfill requirement when industrial activity begins.

I certify my facility has completed construction and will put into operation all structural controls as described in the SWPPP. If necessary, new facilities shall fulfill requirement when industrial activity begins.

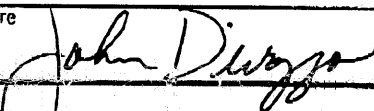
I certify, under penalty of law, that this document and all attachments were prepared by me, or under my direction or supervision in accordance with a system to assure qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person(s) who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations.

I understand that my signature constitutes a legal agreement to comply with the requirements of the appropriate NPDES General Storm Water Permit.

Printed name
John Divozzo

Title
Director, Department of Public Works

Signature



Date

November 16, 2006

IF YOU HAVE ANY QUESTIONS ABOUT THE PREPARATION OF THIS FORM, PLEASE CALL 517-335-4137.

RETURN THIS COMPLETED FORM, CERTIFICATION STATEMENT, AND ANY ATTACHMENTS TO:

KELLY PLOEHN
MICHIGAN DEPARTMENT OF ENVIRONMENTAL QUALITY
WATER BUREAU
2ND FLOOR NORTH
525 WEST ALLEGAN STREET
P.O. BOX 30273
LANSING MI 48909

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W.D.-SURFACE WATER
PERMITS SECTION

DEPARTMENT OF PUBLIC WORKS

3161 SOUTH LAKE MITCHELL DRIVE
CADILLAC, MICHIGAN 49601
231-775-0155
231-775-0156 (FAX)



LANDFILL

990 NORTH U.S. 131
MANTON, MICHIGAN 49663
231-824-6858
231-824-6859 (FAX)

November 16, 2006

Ms. Kelly Ploehn
Michigan Department of Environmental Quality
Water Bureau
2nd Floor North
525 West Allegan Street
P.O. Box 30273
Lansing, Michigan 48909

**RE: Notice of Intent Certification Statement
Wexford County Landfill, Manton, Michigan**

Dear Ms. Ploehn:

This letter serves as certification that Wexford County Landfill is compliance with the requirements of the General Storm Water Permit NO. MIS110000 Part I.B.1.b.1) through 5). The certified Storm Water Operator as required by Section 324.3110 of Part 31 of P.A. 451, 1994, as amended is Ms. Susan Toczyłowski, certification number 06528.

The landfill has prepared a Storm Water Pollution Prevention Plan in accordance with Part I.C.1 through I.C.3 of General Permit NO. MIS110000. Non-structural preventative measures and source controls have been implemented in accordance with Part I.C.2. Source identification has been completed in accordance with I.C.1. Non-storm water discharges at the site are in accordance with I.D.3. Wexford County Landfill does not require structural storm water pollution controls.

Please do not hesitate to contact me if further questions arise regarding this issue.

Sincerely,

A handwritten signature in cursive script that reads "John Divozzo".
John Divozzo, Director

cc: Susan Toczyłowski, CTI and Associates, Inc.
Terri Zick, CTI and Associates, Inc.
Beth Benoit, CTI and Associates, Inc.
Rich Leszcz, Wexford County

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W.D.-SURFACE WATER
PERMITS SECTION